

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, September 24, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-00872	Virginia Allen vs Richard Vargas, Junior
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Further Proceedings

Appearance required.

25CV-01889	Kelly Bretzinger, et al. vs Niren Angle, Doctor of Medicine, et al.
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Demurrer

Defendant's demurrer is OVERRULED.

Plaintiff has alleged that they were truly ignorant of Dr. Syed's alleged liability at the time of filing the complaint and to prove otherwise requires evidence not before the court at this time.

Defendant is to file a responsive pleading within ten (10) days of this Court's order.

25CV-04459

Martin Ruiz vs Dhaliwal Bros Carrier, Inc., et al.

Motion to Set Aside Default

Defendant's motion to set aside the entry of default is GRANTED. Defendant has met all the statutory requirements to be granted relief under Code of Civil Procedure section 473, subdivision (b).

The Court will sign the order lodged on August 28, 2026. Defendants are ordered to file their responsive pleading within ten (10) days of this Court's order.

26CV-03089

Marvin Barnett vs Pea Soup Andersen's-Santa Nella, Inc., et al.

Motion to Set Aside Entry of Default

Defendant's motion to set aside the entry of default is GRANTED. Defendant has met all the statutory requirements to be granted relief under Code of Civil Procedure section 473, subdivision (b).

The Court will sign the order lodged on August 20, 2026. Defendants must file their responsive pleading within ten (10) days of this Court's order.

26CV-03684

Nitricity, Inc. vs California Department of Food and Agriculture, et al.

Status Conference

Appearance required. The Court has reviewed, and appreciates, the joint case management conference statement filed September 17, 2026, laying out the status of this case from the perspective of each side. Based on that statement, the Court anticipates continuing the status conference on a short schedule – approximately 30 to 45 days – to ensure the completion of the administrative record is prioritized. A briefing and hearing schedule would be set upon completion of the record. A final decision will be made at the status hearing after consideration of any additional input from the parties.

26CV-04296

Guadalupe Barriga vs Fernando Guillen

Order to Show Cause Re: Restraining Order

Appearance required. Although proof of service of the original notice of hearing on Respondent has been filed, the court has not received proof of service for the continuance of the original hearing to this date.
